

UNITED STATES DISTRICT COURT

Southern District of New York

UNITED STATES OF AMERICA

v.

Miles Guo (aka "Ho Wan Kwok")

JUDGMENT IN A CRIMINAL CASE

Case Number: 23 Cr. 118 (S3)

USM Number: 49134-510

Melinda Sarafa, Joshua Dratel, John Kaley (CJA)

Defendant's Attorney

THE DEFENDANT:☐ pleaded guilty to count(s) _____☐ pleaded nolo contendere to count(s) _____
which was accepted by the court.☒ was found guilty on count(s) 1, 2, 3, 4, 7, 8, 9, 10, 11 (S3 Superseding Indictment)
after a plea of not guilty.

The defendant is adjudicated guilty of these offenses:

<u>Title & Section</u>	<u>Nature of Offense</u>	<u>Offense Ended</u>	<u>Count</u>
18 USC 1962(d)	Racketeering Conspiracy		1
18 USC 1349	Conspiracy to Commit Wire Fraud and Bank Fraud		2
18 USC 1956(h)	Money Laundering Conspiracy		3

The defendant is sentenced as provided in pages 2 through 6 of this judgment. The sentence is imposed pursuant to the Sentencing Reform Act of 1984.☒ The defendant has been found not guilty on count(s) 5, 6, 12☒ Count(s) All underlying ☐ is ☒ are dismissed on the motion of the United States.

It is ordered that the defendant must notify the United States attorney for this district within 30 days of any change of name, residence, or mailing address until all fines, restitution, costs, and special assessments imposed by this judgment are fully paid. If ordered to pay restitution, the defendant must notify the court and United States attorney of material changes in economic circumstances.

6/29/2026

Date of Imposition of Judgment



Signature of Judge

Analisa Torres, U.S.D.J.

Name and Title of Judge

7/2/2026

Date

DEFENDANT: Miles Guo (aka "Ho Wan Kwok")
CASE NUMBER: 23 Cr. 118 (S3)

ADDITIONAL COUNTS OF CONVICTION

<u>Title & Section</u>	<u>Nature of Offense</u>	<u>Offense Ended</u>	<u>Count</u>
18 USC 371	Conspiracy to Commit Securities Fraud		4
18 USC 1343 and 2	Wire Fraud (Farm Loan Program)		7
18 USC 1343 and 2	Wire Fraud (G Clubs)		9
18 USC 1343 and 2	Wire Fraud (The Himalaya Exchange)		11
15 USC 78j(b) & 78ff and 18 USC 2	Securities Fraud (Farm Loan Program)		8
15 USC 78j(b) & 78ff and 18 USC 2	Securities Fraud (G Clubs)		10

DEFENDANT: Miles Guo (aka "Ho Wan Kwok")

CASE NUMBER: 23 Cr. 118 (S3)

IMPRISONMENT

The defendant is hereby committed to the custody of the Federal Bureau of Prisons to be imprisoned for a total term of:

- 240 months' imprisonment on Counts 1, 3, 7, 8, 9, 10, and 11, to run concurrently with each other and sentence on Count 2
- 360 months' imprisonment on Count 2 to run concurrently with sentence on all other counts;
- 60 months' imprisonment on Count 4 to run concurrently with sentence on Count 2 and consecutively with sentence on all other counts

☒ The court makes the following recommendations to the Bureau of Prisons:
The Court recommends that Mr. Guo serve his sentence at FCI Danbury or FCI Fairton

☐ The defendant is remanded to the custody of the United States Marshal.

☐ The defendant shall surrender to the United States Marshal for this district:

☐ at _____ ☐ a.m. ☐ p.m. on _____ .

☐ as notified by the United States Marshal.

☐ The defendant shall surrender for service of sentence at the institution designated by the Bureau of Prisons:

☐ before 2 p.m. on _____ .

☐ as notified by the United States Marshal.

☐ as notified by the Probation or Pretrial Services Office.

RETURN

I have executed this judgment as follows:

Defendant delivered on _____ to _____
at _____ , with a certified copy of this judgment.

UNITED STATES MARSHAL

By _____
DEPUTY UNITED STATES MARSHAL

DEFENDANT: Miles Guo (aka "Ho Wan Kwok")
CASE NUMBER: 23 Cr. 118 (S3)

CRIMINAL MONETARY PENALTIES

The defendant must pay the total criminal monetary penalties under the schedule of payments on Sheet 6.

	<u>Assessment</u>	<u>Restitution</u>	<u>Fine</u>	<u>AVAA Assessment*</u>	<u>JVTA Assessment**</u>
TOTALS	\$ 900.00	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00

☐ The determination of restitution is deferred until _____. An *Amended Judgment in a Criminal Case (AO 245C)* will be entered after such determination.

☐ The defendant must make restitution (including community restitution) to the following payees in the amount listed below.

If the defendant makes a partial payment, each payee shall receive an approximately proportioned payment, unless specified otherwise in the priority order or percentage payment column below. However, pursuant to 18 U.S.C. § 3664(i), all nonfederal victims must be paid before the United States is paid.

<u>Name of Payee</u>	<u>Total Loss***</u>	<u>Restitution Ordered</u>	<u>Priority or Percentage</u>
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TOTALS	\$	<u>0.00</u>	\$	<u>0.00</u>
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☐ Restitution amount ordered pursuant to plea agreement \$ _____

☐ The defendant must pay interest on restitution and a fine of more than \$2,500, unless the restitution or fine is paid in full before the fifteenth day after the date of the judgment, pursuant to 18 U.S.C. § 3612(f). All of the payment options on Sheet 6 may be subject to penalties for delinquency and default, pursuant to 18 U.S.C. § 3612(g).

☐ The court determined that the defendant does not have the ability to pay interest and it is ordered that:

☐ the interest requirement is waived for the ☐ fine ☐ restitution.

☐ the interest requirement for the ☐ fine ☐ restitution is modified as follows:

* Amy, Vicky, and Andy Child Pornography Victim Assistance Act of 2018, Pub. L. No. 115-299.

** Justice for Victims of Trafficking Act of 2015, Pub. L. No. 114-22.

*** Findings for the total amount of losses are required under Chapters 109A, 110, 110A, and 113A of Title 18 for offenses committed on or after September 13, 1994, but before April 23, 1996.

DEFENDANT: Miles Guo (aka "Ho Wan Kwok")
CASE NUMBER: 23 Cr. 118 (S3)

SCHEDULE OF PAYMENTS

Having assessed the defendant's ability to pay, payment of the total criminal monetary penalties is due as follows:

- A ☒ Lump sum payment of \$ 900.00 due immediately, balance due
- ☐ not later than _____, or
☐ in accordance with ☐ C, ☐ D, ☐ E, or ☐ F below; or
- B ☐ Payment to begin immediately (may be combined with ☐ C, ☐ D, or ☐ F below); or
- C ☐ Payment in equal _____ (e.g., weekly, monthly, quarterly) installments of \$ _____ over a period of _____ (e.g., months or years), to commence _____ (e.g., 30 or 60 days) after the date of this judgment; or
- D ☐ Payment in equal _____ (e.g., weekly, monthly, quarterly) installments of \$ _____ over a period of _____ (e.g., months or years), to commence _____ (e.g., 30 or 60 days) after release from imprisonment to a term of supervision; or
- E ☐ Payment during the term of supervised release will commence within _____ (e.g., 30 or 60 days) after release from imprisonment. The court will set the payment plan based on an assessment of the defendant's ability to pay at that time; or
- F ☐ Special instructions regarding the payment of criminal monetary penalties:

Unless the court has expressly ordered otherwise, if this judgment imposes imprisonment, payment of criminal monetary penalties is due during the period of imprisonment. All criminal monetary penalties, except those payments made through the Federal Bureau of Prisons' Inmate Financial Responsibility Program, are made to the clerk of the court.

The defendant shall receive credit for all payments previously made toward any criminal monetary penalties imposed.

☐ Joint and Several

Case Number Defendant and Co-Defendant Names (including defendant number)	Total Amount	Joint and Several Amount	Corresponding Payee, if appropriate
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- ☐ The defendant shall pay the cost of prosecution.
- ☐ The defendant shall pay the following court cost(s):
- ☒ The defendant shall forfeit the defendant's interest in the following property to the United States:
See additional forfeited property below

Payments shall be applied in the following order: (1) assessment, (2) restitution principal, (3) restitution interest, (4) AVAA assessment, (5) fine principal, (6) fine interest, (7) community restitution, (8) JVT A assessment, (9) penalties, and (10) costs, including cost of prosecution and court costs.

DEFENDANT: Miles Guo (aka "Ho Wan Kwok")

CASE NUMBER: 23 Cr. 118 (S3)

ADDITIONAL FORFEITED PROPERTY

- a. As a result of committing the offense alleged in Count One of the S3 Superseding Indictment, the Defendant shall forfeit to the United States, pursuant to Title 18, United States Code, Section 1963:
- i. Any interest acquired or maintained in violation of Section 1962;
 - ii. Any interest in, security of, claim against, or property or contractual right of any kind affording a source of influence over, any enterprise the defendants and their co-conspirators established, operated, controlled, conducted, or participated in the conduct of, in violation of Section 1962; and
 - iii. Any property constituting, derived from, any proceeds obtained, directly or indirectly, from the racketeering activity charged in Count One.
- b. As a result of committing the wire fraud and securities fraud offenses alleged in Counts Two, Four, and Seven through Eleven of the Indictment, the Defendant shall forfeit to the United States, pursuant to Title 18, United States Code, Section 981(a)(1)(C) and Title 28, United States Code, Section 2461(c), any and all property, real and personal, that constitutes or is derived from proceeds traceable to the commission of said offenses, including but not limited to a sum of money in United States currency representing the amount of proceeds traceable to the commission of said offenses.
- c. As a result of committing the money laundering offense alleged in Count Three of the Indictment, the Defendant shall forfeit to the United States, pursuant to Title 18, United States Code, Section 982(a)(1), any and all property, real and personal, involved in said offenses, or any property traceable to such property, including but not limited to a sum of money in United States currency representing the amount of property involved in said offenses.

The Defendant shall forfeit the property listed in the preliminary order of forfeiture. See ECF No. 720, ECF No. 858. The order of forfeiture includes a money judgment of \$889 million against the Defendant. See ECF No. 858.

The Defendant shall also forfeit the property listed in the supplemental order of forfeiture. See ECF No. 790.